SEIZURE MEMO AND PANCHNAMA (Under Section 102 Cr.P.C. / Section 106 BNSS, 2023)
POLICE STATION: EOW, Mandir Marg, New Delhi | FIR NO: 0412/2024
DATE OF SEIZURE: 24/08/2024 | TIME: 03:30 PM to 06:15 PM IST
LOCATION: Registered Office of Zenith Cloud Technologies Pvt. Ltd., Okhla Phase-III, New Delhi.
INVESTIGATING OFFICER: SI Devendra Chawla, EOW Mandir Marg.

PANCH WITNESSES RECORDED IN MEMO:
1. Head Constable Satbir Singh, No. 892/EOW, Delhi Police (Police Official / Non-Independent).
2. Constable Virender Kumar, No. 1104/EOW, Delhi Police (Police Official / Non-Independent).

DESCRIPTION OF ARTICLES AND ELECTRONIC RECORDS SEIZED:
Item 1: One Lenovo ThinkPad P1 Gen 6 Laptop (Serial No. LNV-88219-X) purportedly used by CTO Sameer Verma.
Item 2: Hard disk partition clone containing Git repository backups and escrow correspondence files.
Item 3: Bank account statements of Zenith Cloud Technologies Pvt. Ltd. (HDFC Bank Okhla Branch A/c 502000318921).
Item 4: One paper binder containing duplicate carbon copy of Master Software Agreement dated 15/01/2024.

SEIZURE PROCEDURE AND OBSERVATIONS:
The electronic devices were seized from the open technical bay without using static-shielded anti-tamper forensic bags.
Hash values (MD5 / SHA-256) of the seized storage drive were NOT generated at the time and spot of seizure.
No independent civilian or public witnesses from the commercial industrial locality were joined in the Panchnama.
Both memo witnesses are subordinate police officers attached to the same police station.

PROCEDURAL COMPLIANCE DEFICIENCIES NOTED FOR DEFENCE BRIEF:
1. Violation of Section 100(4) CrPC / Section 103 BNSS: Failure to join two independent and respectable inhabitants.
2. Violation of Delhi High Court Forensic Guidelines: Failure to generate cryptographic SHA-256 hash at the seizure locus.
3. Missing Section 65B Indian Evidence Act / Section 63 BSA Certificate for the seized electronic files.
Sd/- SI Devendra Chawla (IO) | Sd/- HC Satbir Singh (Panch 1) | Sd/- Ct Virender (Panch 2)